



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner II
Subject: UDC-22-00271 – 516 Pontillo Drive 201 Agreement
Date: September 12, 2022

Background:

The item for consideration is an exception to Cheyenne Water and Sewer District intergovernmental agreement (201 IGA) to implement the 1982 Wastewater Facilities Master Plan. This is approved by resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral: September 12, 2022
- Public Services Committee: September 20, 2022
- Final Consideration: September 26, 2022
-

Planning Commission Recommendation:

The Planning Commission heard this item at their September 6, 2022, meeting and voted to recommend the Governing Body approve this exception.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION GRANTING AN EXCEPTION TO THE ‘201 AGREEMENT’ FOR THE OWNER OF THE PROPERTY LOCATED AT 516 PONTILLO DRIVE TO ALLOW THE CREATION OF A NEW ON-SITE SEPTIC SYSTEM LOCATED WITHIN LARAMIE COUNTY.”

WHEREAS, on April 25, 1983, the City of Cheyenne (“City”), the County of Laramie (“County”), the City of Cheyenne Board of Public Utilities (“BOPU”), and the South Cheyenne Water and Sewer District (“District”) entered into an agreement entitled “Memorandum of Agreement: Intergovernmental Contract Agreeing to Participate in the Implementation of the Findings of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District and Laramie County”;

WHEREAS, the April 25, 1983 agreement is commonly referred to as the “201 Agreement;” and

WHEREAS, the 201 Agreement defines the respective responsibilities and obligations of the signatory governmental entities with respect to the implementation of the “201 Facilities Plan” that was created in response to the requirements of Section 201 of the Federal Water Pollution Control Act;

WHEREAS, one of the principal purposes of the 201 Agreement is to ensure that wastewater (sewage) generated in the areas immediately surrounding the corporate limits of the City of Cheyenne would preferentially be disposed of through the sanitary sewer systems operated by BOPU;

WHEREAS, the 201 Agreement defines the “service area boundary” sometimes referred to as the “sewerable boundary” or “201 Area” as the area that “can be provided with Municipal Sewage Treatment Services via gravity flow”;

WHEREAS, Daniel and Devon Mchenry (“Applicant”) is requesting a 201 Exception as owner of a residential property the Applicant resides in and which lies within Laramie County jurisdiction as well as within the 201 Area, specifically Parcel Identification No. 13662010000500 which is 10.0-acres in size;

WHEREAS, the Applicant seeks to install as septic holding system at a cost of approximately \$6,800 rather than pay an estimated \$795,000.00 cost to extend sanitary sewer service approximately 7,200 linear feet to the Applicant’s property;

WHEREAS, pursuant to Section 3.4.(d) of the 201 Agreement, Laramie County government agreed to work with the City-County Health Unit to “ensure that no new permits for small wastewater treatment systems [septic systems] within the service area boundary that are inconsistent with the Facility Plan are issued”;

WHEREAS, exceptions for the installation of small wastewater treatment systems (septic systems) may be granted pursuant to Section 4.1 of the 201 Agreement;

WHEREAS, the Applicants have applied for an exception pursuant to Section 4.1.(c) of the 201 Agreement which provides as follows:

“4.1 Exceptions can be granted for the following reasons . . . (c) The exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception”;

WHEREAS, on September 6, 2022, the City Planning Commission recommended that the Governing Body grant the 201 Exception based on a finding that a demonstrable hardship exists under Section 4.1.(c) of the 201 Agreement to permit the installation of a septic holding system on the subject property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT:

The City of Cheyenne hereby consents to the granting of an exception pursuant to Section 4.1.(c) of the 201 Agreement to permit installation of a septic holding system, as the exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2022.

(SEAL)
ATTEST:

PATRICK COLLINS, MAYOR

KRISTINA F. JONES, CITY CLERK



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Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION SEPTEMBER 6, 2022 STAFF REPORT

FILE: UDC-22-00271: 516 Pontillo Drive - 201 Exception

REQUEST: 201 Exception to allow installation of a septic system

LOCATION: 516 Pontillo Drive

APPLICANT: Daniel and Devon Mchenry

ZONING: AR Agricultural Residential (County)

CASE PLANNER: Seth Lloyd, Planner II



RECOMMENDED MOTION:

Move to recommend the City Council **approve** the exception to the 201 Facilities Plan requirement for sewer service to a new house at 516 Pontillo Drive.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- Cheyenne Municipal Code Chapter 1.16 (Annexation and Infrastructure Improvements)
- Cheyenne Municipal Code Chapter 13.12 (Sewer System)
- 201 Intergovernmental Agreement to participate in the implementation of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District, and Laramie County (1983) (IGA)
- 201 Facilities Plan Final Report (1982)
- Plan Cheyenne

The request for an exception must be submitted to the Planning Commission for review. After Commission review, the exception would be approved or denied by the City Council. If the property seeking the exception is outside the Corporate Limits of the City and inside the 201 Service Area Boundary, then County Commissioner approval is also required.

BACKGROUND:

In 1982 the City, County, and south Cheyenne Water and Sewer District executed an intergovernmental agreement to implement the 1982 Wastewater Facilities Master Plan. The plan and the IGA were intended to satisfy the Federal Clean Water Act requirements and to protect the safety and quality of the region's groundwater from pollution, specifically from septic system failures.

The IGA requires connection to sewer systems for development of properties lying within the Urban Service Area identified in the Plan. The Facilities Plan defines the Urban Service Area as the area where "Municipal Sewerage Treatment services can be provided via gravity flow" [Section 1.0, Definitions of the IGA]. The IGA further states that the City of Cheyenne is to limit the use of on-site wastewater treatment systems within the Urban Service Area; this would include septic systems and package wastewater treatment plants. The IGA states that the City and County will not approve any development which is inconsistent with the Facility Plan unless granted an exception pursuant to Sections 4.0 to 4.7 of the IGA.

The applicant has already received approval for a 201 Exception for the current house at 516 Pontillo Drive, and now wants to build a second house with a separate system. The applicant applied for a permit to County Health. The permit was denied. After denial, the applicant was eligible to apply for an exception pursuant to the IGA. The request for an exception must be submitted to the Planning Commission for review. After Commission review, the exception would be approved or denied by the City Council and the County Commissioners if the property seeking the exception is outside the Corporate Limits of the City and inside the 201 Service Area Boundary.

The property is in the South Cheyenne Water Sewer District boundary, and therefore would not be serviced by BOPU utilities. In analyzing this exception, consideration was taken for the cost of the property tying into SCWSD facilities, not BOPU facilities.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Employment	County AR Agricultural Residential	Rural residential
North	Mixed-use Employment	County A-2 Agricultural	Undeveloped
South	Mixed-use Employment	County A-2	Rural residential
East	Mixed-use Employment	County AR	Undeveloped
West	Mixed-use Employment	County A-2	Undeveloped

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to approve the exception, the Commission must make the following findings per Sections 4.0 to 4.7 of the 201 IGA. A detailed analysis is below:

Section 4.0: EXCEPTIONS FOR DEVELOPMENT THAT IS NOT CONSISTENT WITH THE PROPOSED FACILITY PLAN:***4.1 Exceptions can be granted for the following reasons:***

(a) The proposed exception conforms with the criteria for exceptions in The City of Cheyenne Annexation Policies.

(b) The exception can be shown not to be detrimental to the public health, safety and welfare [sic].

(c) The exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception.

(d) The exception demonstrates substantial compliance with the proposed Facility Plan.

Reason (a): This property is outside City limits and not adjacent to City limits. The subject property is within the South Cheyenne Water and Sewer District and is not anticipated to connect to Board of Public Utilities infrastructure.

Reason (b): The facility proposed is on a parcel that is roughly 10 acres in size. Throughout the County, septic systems are allowed on 5-acre lots, and approving this exception would be consistent with standard County development requirements.

Reason (c): The nearest SCWSD sanitary sewer line is over 7,000 feet away (per the contractor's estimate), and across South Greeley Highway. The estimated cost of extending a sewer main is \$795,000, and the estimated septic system cost is under \$7,000.

Reason (d): The facility would maintain the principal goal of the IGA – that is to prevent the excessive environmental pollution of the land. Typical county development allows septic systems on 5-acre parcels, and, if approved, this would establish two septic systems on a 10-acre parcel.

4.2. Exceptions may only be considered if the proposal has been denied due to non-conformance with the proposed Facility Plan.

The applicant applied for a permit to allow a small wastewater system on June 9, 2022. The permit was denied the same day. After denial, the applicant was eligible to apply for an exception pursuant to the IGA.

4.3. The request for exception must be submitted to the Planning Commission for review.

This proposal is being submitted to the Planning Commission.

4.4. After Planning Commission review, the exception will be approved or disapproved by: (a) The City Council if the property seeking exception is within the Corporate Limits; (b) The City Council and County Commissioners if the property seeking exception is outside the Corporate Limits and inside the Service Area Boundary.

The property seeking an exception is outside the City limits of the City of Cheyenne, and the exception request will be submitted to the City Council after the City Planning Commission review. The County Commissioners also must approve this exception.

4.5 (Due to a formatting error in the original Agreement, there is no Section 4.5)

4.6. The replacement of an existing on-site wastewater treatment system on a property that is neither contiguous with the Cheyenne Corporate Limits nor within the DISTRICT's boundaries will not require an exception under this Agreement.

This Section is not applicable to this proposal.

4.7. The installation of a new on-site wastewater system on a single lot within the Service Area Boundary that is not contiguous with the Cheyenne Corporate Limits nor within the DISTRICT's boundaries will not require an exception under this Agreement, provided that the lot meets all the requirements of the Subdivision Regulations and any other requirements of this Agreement and was platted prior to the effective date of this Agreement.

This Section is not applicable to this proposal.

RELEVANT PLANCHEYENNE POLICIES

The following PlanCheyenne policies are related to this project:

Foundation 1—Growing as a Community of Choice
Policy 1.1.C: Regional Coordination on Land Use and Development Issues.

Foundation 7—Developing in a Fiscally Responsible Way
Principle 7.1: Our community will coordinate and plan for growth regionally to ensure efficient and cost-effective services and utilities.
Principle 7.2: The Cheyenne Area will provide adequate public facilities and services for current and future residents in a fiscally responsible manner.

The IGA was created to coordinate regionally on environmental health. The subject property is within the SCWSD and on the edge of said district. Land around the parcel will likely either develop in a rural residential pattern, or, to the east, will develop within City limits and connect to BOPU facilities. The mile-plus extension of a sewer main to service a few rural residential properties is not fiscally responsible. The exception request **complies** with the goals of PlanCheyenne.

CONCLUSION:

Staff's analysis is that the application meets the requirements to qualify for a 201 Exception.

ALTERNATIVES:

1. Recommend the Governing Body approve the exception as submitted by the applicant (**Staff Recommendation**).
2. Recommend the Governing Body approve the exception subject to Staff's recommended conditions.
3. Recommend denial of the exception based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the item until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to Staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Planning Commission acts contrary to staff's recommendation, the Commission shall cite specific reasons (based on the review criteria) for a recommendation to approve or deny.

STAFF'S RECOMMENDATION:

Staff recommends approval of the 201 exception for 516 Pontillo Drive.

ATTACHMENTS:

1. Applicant Exception Request Letter, including Cheyenne-Laramie County Health Denial Letter and cost estimate

Exception to the “201 Agreement”

Daniel and Devon McHenry

We come before you to ask for an Exception to the “201 Agreement. As stated in Section 4.0 of the 201 Agreement exceptions of the 201 Agreement can be granted for these reasons:

Section 4.0 B the exception can be shown not to be detrimental to the public health, safety, and welfare.

Section 4.0 C the exception will alleviate a clearly demonstratable hardship and compliance with the facility plan will exacerbate this hardship. A hardship will be determined based upon a cost/effectiveness study of the sewer service provision to the property seeking the exception.

We can clearly prove that we indeed have a Hardship we have completed a study of the sewer service cost compared to the cost of a personal wastewater treatment system IE: septic system.

I would like to reference state statute 41-10-113 included in this packet. This statute reads: NO OWNER SHALL BE COMPELLED TO CONNECT HIS PROPERTY WITH SUCH A SYSTEM UNLESS THE SERVICE LINE IS BROUGHT, BY THE DISTRICT, TO A POINT WITHIN FOUR HUNDRED FEET OF HIS DWELLING PLACE.

We are an average of 7250 feet away from the last sewer main tap. This far exceeds the burden of more than 400 feet stated in State Statute 41-10-113.

As far as proving a hardship do to cost, we have requested bids from contractors on the approved list given to us by the Environmental Health office. The Bid is as follows from Aztec Construction is \$795,000. This bid is included in your packet. This bid does not include any rising stations if needed. The cost of each rising station is well over \$200,000.

We have also included a bid from Four Quarters Construction for an installation of a Septic System. The amount of the Septic System installation is \$6800.00

The cost difference is abundantly clear. The cost to run a sewer line is an extraordinary burden for any homeowner to endure. Please also note that our property is used for agricultural. We have a small cattle operation. We hope that you have reviewed the information in the packet provided to you.

Respectfully,

Daniel and Devon Mchenry

516 Pontillo Drive

Cheyenne Wyoming, 82007

307-286-7087 or 307-286-7086

dmm062070@gmail.com

**CHEYENNE-
LARAMIE COUNTY
HEALTH
DEPARTMENT**
100 CENTRAL AVENUE
CHEYENNE, WY 82007
307-633-4000

Certified

To: Daniel A. and Devon M. McHenry
516 Pontillo Dr
Cheyenne, Wyoming 82007

Date: June 22, 2022

Re: Septic permit application in South Cheyenne Water and Sewer District, a.k.a.
Tract 2 of Survey W ½, S ½, SE ¼, NE ¼, of Section 20 T 13 Range 66.

Dear Mr. and Mrs. McHenry,

On June 9, 2022, our office received and reviewed your application for a permit to install a small wastewater system on a parcel of property located in W ½, S ½, SE ¼, NE ¼, Section 20, Township 13, Range 66. After careful review of your application this office cannot issue a small wastewater permit at this time for the following reasons:

1. Installation of a new septic system is prohibited in the South Cheyenne Water and Sewer District boundaries and is not in compliance with the "201 Facilities Plan" or the "201" agreement.
2. Properties in the District's boundaries have experienced increased levels of nitrate contamination in well water and it is not environmentally responsible to continue to increase septic load to an area already impacted.
3. It is not financially responsible to allow a property owner to pay out money today for a septic system and then turnaround and pay tap fees in a few years if hook-up to the public system becomes mandatory.

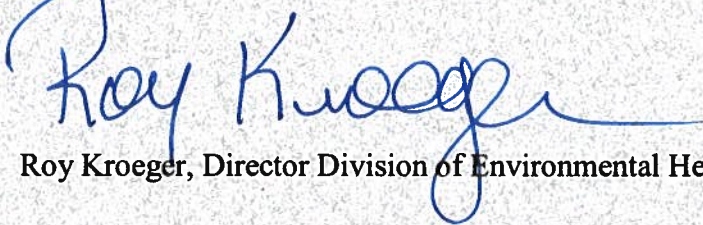
In order to appeal this Cheyenne/Laramie County Health Department final decision; you must file a written request for hearing with the Laramie County Commissioners within sixty (60) days of receipt of this denial notification. You must file paperwork to the Regional Planning Commission, County Commissioners and City Council and request to be placed on their agenda. Further more you must demonstrate to the governing bodies that your request for exception should be granted by meeting the criteria for exception. Your application/inspection fee for the small wastewater system will be held until we hear from you.

I have enclosed a copy of the "201" agreement and highlighted the Section regarding EXCEPTIONS. I have also enclosed applications for the respective governing bodies' agendas.



If you have any questions concerning anything in this letter please feel free to contact me at 100 Central Ave or call at 633-4090.

Sincerely,

A handwritten signature in blue ink that reads "Roy Kroeger". The signature is fluid and cursive, with a long horizontal stroke extending to the right.

Roy Kroeger, Director Division of Environmental Health

cc: Kathy Emmons, Executive Director, Cheyenne-Laramie County Health Dept.
Laramie County Attorney
City of Cheyenne Development Office
Laramie County Planning
County Commissioners
Chairman, City Council
DEQ, Water Quality Division
South Cheyenne Water and Sewer District

Water and Sewer District Law

State Statute 41-10-113 — Powers of District Board

(xxi) To fix and from time to time to increase or decrease water and sewer rates, tolls or charges, including but not necessarily limited to use charges, connection fees and standby charges, for services or facilities furnished by the district, and to pledge such revenue for the payment of any indebtedness of the district. Until paid, all rates, tolls or charges shall constitute a perpetual lien on and against the property served, and any such lien may be foreclosed in the same manner as provided by the laws of the state of Wyoming for the foreclosure of mechanics' liens. Before any such lien is foreclosed the district shall hold a hearing thereon after notice thereof by publication and by registered first class mail, postage prepaid, addressed to the last known owner at his last known address according to the records of the district and the real property assessment roll in the county in which the property is located. The board shall shut off or discontinue service for delinquencies in the payment of such rates, tolls or charges, or in the payment of taxes or assessments levied pursuant to this act, and prescribe and enforce rules and regulations for the connection with and the disconnection from properties of the facilities of the district. For health and sanitary purposes the board shall have the power to compel the owners of inhabited property within a sewer district to connect their property with the sewer system of such district and upon a failure so to connect within sixty (60) days after such written, mailed notice by the board so to do the board may cause such connection to be made and a lien to be filed against the property for the expense incurred in making such connection. **NO OWNER SHALL BE COMPELLED TO CONNECT HIS PROPERTY WITH SUCH SYSTEM UNLESS A SERVICE LINE IS BROUGHT, BY THE DISTRICT, TO A POINT WITHIN FOUR HUNDRED (400) FEET OF HIS DWELLING PLACE;**



Aztec Construction Co., Inc.

Tel: (307) 637-6171
Fax: (307) 637-2824

1215 East Fox Farm Road
Cheyenne, WY 82007

July 14, 2022

Daniel McHenry
516 Pontillo Drive
Cheyenne, WY 82007

Phone: 307-286-7086

RE: Sewer Line Budget- Daniel A. McHenry & Devon M. McHenry Property

Aztec Construction Co., Inc. is pleased to quote the following budget numbers on the above referenced project. This proposal is based on a record of survey by Steils Surveying, dated September 2005. As no preliminary design is available, we had to make many assumptions.

SCOPE OF WORK

- Install approximately 7250 LF of 8" sewer main. We assume to be able to tie in at the manhole on East Wallick Road. It is not known if the grades will work without a lift station. This only services Tract 1, 2, 11 and 12
- Furnish and install approximately 23 EA 48" diameter manholes at 320' spacing. Maximum depth is figured at 12 feet deep with no rock or ground water contingency added.
- We have added a 10% engineering fee for budget proposal.

Estimated Budget

\$795,000.00

Budget does NOT include:

- Any permits or fees
- Easement acquisition
- Lift station
- Services
- Rock ex or dewatering

We appreciate the opportunity to work with you on budgeting your project and look forward to quoting a firm price once final prints are available. Should you have any questions, please contact me at 307-637-6171.

Respectfully,

Jeffrey J. Appleman-Estimator/PM
AZTEC CONSTRUCTION CO., INC.



4 QUARTERS EXCAVATION & DEVELOPMENT

4011 Evans Ave - Cheyenne, WY 82001

PO Box 2478, Cheyenne, WY 82003-2478

(307) 635-2746 Main Office, (307) 638-8838 Fax

www.4qexcavation.com

Tax ID: 68-0591642

(307) 630-7343 Darrel M. McMullen, President

Darrel W. McMullen, Owner

Quote for Customer:

July 18, 2022

PROJECT: 516 Pontello - Septic

Item No.	Description	Unit	Estimated Quantity	Unit Price	Total Cost
1	SEPTIC INSTALL - 1250 GAL/200'	EA	1	6,800.00	6,800.00
GRAND TOTAL with Sales Taxes					\$6,800.00

Excluded:

- Anything not mentioned, please consider it not bid.
- Bond. Add 3.25% for bond if required.
- Concrete/asphalt repairs, pouring, paving, or finishing.
- No soils report was provided in bidding documents. If unsatisfactory soils or conditions are found during excavation, repair/import/export/additional equipment/etc will be in addition to original bid and cause for change order.
- All permits, engineering, surveying, traffic control, stormwater pollution prevention plans, quality control testing, tapping fees and city inspections are the responsibility of others.
- Shoring, muck excavation, rock excavation, erosion control, fencing, potholing, import/respreading of topsoil, export of materials/soils/aggregate on site, ripping and other items not listed.
- The physical location of the utilities must be determined by others through potholing.
- Removal and disposal of buried trees, fence, buildings, foundations, concrete ditches, debris, buried pipe, buried structures, wells, septic tanks, utility poles, overhead/buried wiring and hazardous material.
- Multiple mobilizations. Multiple installations/repairs of erosion control.
- Regrading site after utility installation or any other subsequent work.
- Fine grading for concrete structures, curb, pavements, sidewalks, trails and flatwork construction. Any quoted base grading brought within +/- .1
- Inspection, testing and quality control. It is understood the owner or owner's construction manager will decide on the need and to what extent they will follow and manage any geotechnical engineer's recommendations as related to test frequencies, mitigation of soils and observation of the work.

Notes:

- 4 Quarters will participate in scheduling.
- Prices quoted are good for 30 days.
- Payments are due within 30 Days or be subject to interest at 1.5% compounded monthly.
- This quote is to be incorporated into the contract agreement and shall have precedence over all other conflicting language.
- 4 Quarters is not responsible for errors in design or engineering.

- All line items that are not lump sum are unit prices and will be charges as such. Unit prices to apply to as-built quantities.
- Call to discuss adding/removing items from this bid.
- This proposal is based upon a one time mobilization to complete all of the quoted work.
- Indemnification to the owner will only be provided to the extent claims arise out of work performed by or on account of 4 Quarters.
- No defense will be provided for claims caused by the owner or others.
- Sequencing and phasing of the grading will be as determined by 4 Quarters.
- Work will not commence until a set of permitted construction plans is received.
- Work will not commence until a contract is signed.

Best Regards,

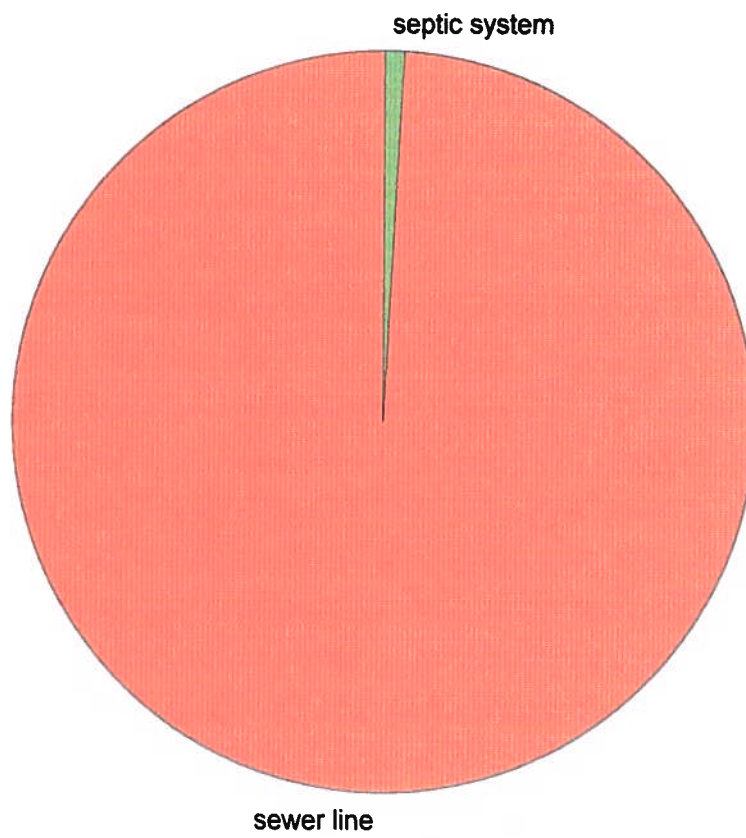


Darrel M. McMullen, President

Accepted by Customer:

Date

COMPARISON OF COST



40.200 **DISTRICT A-2:** AGRICULTURAL.

Areas in a natural state or in which the growing of crops, flowers, trees, or pasture, or the production of livestock, or other farming or ranching activity is practiced are considered agricultural. This district is for county use only.

40.210 **Uses:**

40.211 **Uses by right.**

- (a) Agriculture and uses incidental to an agricultural operation.
- (b) Animal Hospitals, Clinics.
- (c) Bed and breakfasts.
- (d) Cemeteries.
- (e) Commercial stables, arenas, kennels and show barns. (S. 55.031).
- (f) Family child care home.
- (g) Home occupations. (S. 52.000).
- (h) Single-family residential.

40.212 **Uses requiring administrative approval. (S. 70.000).**

The following uses may be permitted.

- (a) Churches.
- (b) Duplexes.
- (c) Family child care centers and child care centers - minor (S. 51.000).

40.213 **Uses requiring Board approval. (S.74.000).**

The following uses may be permitted by the Board.

- (a) Agricultural equipment or product sales.
- (b) Commercial animal processing plants.
- (c) Commercial feed lots.
- (d) Primary and secondary schools.
- (e) Race tracks.
- (f) Work camps.
- (g) Any other similar agriculturally oriented use.
- (h) Assisted living facilities (S. 51.000).

40.220 **Density:**

The minimum density for any use or residential unit in this district is twenty (20) acres - as averaged within the subdivision - provided that no lot or tract shall be